1201 and 109 of the Indian Penal Code. However, this is not to say that Bhagat did not commit the atrocity together with his accomplices. Such is the commitment to the cause of Bhagat Singh and what he stood for that in Pakistan the advocate Imtiaz Rashid Qureshi has latched on to the fact that given that the initial FIR, by which prosecutions are first initiated in the Indian subcontinent, did not mention the three accused, Bhagat Singh, Rajguru and Sukhdev, cannot be shown to have committed the murder of Saunders and should be exonerated.

When Qureshi procured a copy of the FIR in mid-2019, it was widely reported that it could form the basis of proof that Bhagat Singh, Rajguru and Sukhdev were innocent of the murder of Saunders.[3] Yet, nothing can be more misconceived. Bhagat Singh was not innocent of the crime of killing Saunders. He and his colleagues admitted they shot and killed Saunders. It was the trial that was contrary to every cannon of natural justice and due process and begs questions with its material irregularities. These included trying the accused without ensuring his attendance in court while he remained confined in detention. It included doing so in the absence of proper legal representation. It involved removing two of the three panel judges within a month of a special tribunal being established so that only one judge heard all of the evidence from beginning to end. And it involved the passing of a sentence of death without cross-examination of the 450 state witnesses arraigned by the state. Bhagat Singh and Dutt had both been identified by Sir Sobha Singh, then a member of the Legislative Assembly and the grandfather of the noted Indian writer and journalist, Khushwant Singh, as the pair who had thrown the smoke bombs in the legislative chamber in Delhi. So the real issue is not that the initial FIR referred to two ‘unknown gunmen’ and not to Bhagat Singh and his two companions, but the rampant coercive colonial violence of his trial.

This was structural violence because it was based on the Lahore Ordinance III of 1930, passed by the governor-general and viceroy of the time, Lord Irwin. The fact that the special tribunal set up for the trial disappeared into thin air suggested that it was an execution court. Its only purpose was to ensure that Bhagat Singh and his two colleagues, Sukhdev